

SENATE No. 2532

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Walpole to grant up to 2 additional licenses for the sale of all alcoholic beverages not to be drunk on the premises.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>
<i>John H. Rogers</i>	<i>12th Norfolk</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>

SENATE No. 2532

By Mr. Rush, a petition (accompanied by bill, Senate, No. 2532) of Michael F. Rush, Edward R. Philips, Marcus S. Vaughn, John H. Rogers and others (by vote of the town) for legislation to authorize the town of Walpole to grant up to 2 additional licenses for the sale of all alcoholic beverages not to be drunk on the premises. Consumer Protection and Professional Licensure. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Walpole to grant up to 2 additional licenses for the sale of all alcoholic beverages not to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. (a) Notwithstanding Section 17 of Chapter 138 of the General Laws, the
2 licensing authority of the town of Walpole may grant 2 non-transferable restricted additional
3 licenses for the sale of all alcoholic beverages not to be drunk on the premises pursuant to
4 Section 15 of said Chapter 138; provided, that both licenses shall be granted only to
5 establishments located within the Town’s Central Business District, as that district was defined
6 by the town’s Zoning By-Law as of January 1, 2025. The licenses granted pursuant to this
7 section shall be subject to all of said Chapter 138 except said Section 17.

8 (b) The licensing authority shall not approve the transfer of a license granted pursuant to
9 this act to a location outside of the Town’s Central Business District, but it may grant any such
10 license to a new applicant at a location with the Central Business District if the applicant files
11 with the licensing authority a letter from the Department of Revenue and a letter from the

Department of Unemployment Assistance indicating that the license is in good standing with those departments and that all applicable, taxes, fees and contributions have been paid.

(c) If a license granted pursuant to this act is cancelled, revoked or no longer in use at the location of original issuance, it shall be returned physically, with all the legal rights, privileges and restrictions pertaining thereto, to the licensing authority, which licensing authority may then grant the license to a new applicant at the same or a different location within the Town's Central Business District under the same conditions as specified in this act.

(d) All licenses granted under this act shall be issued within 3 years after the effective date of this act; provided, that a license originally granted within that time period may be granted to a new applicant under subsection (c) at any time thereafter.

Section 2. This act shall take effect upon its passage.